2. The Act is not unconstitutionally vague and overbroad. The due process concerns of the void-for-vagueness doctrine are not seriously implicated by the Act, either on its face or as construed in this case. The Minnesota Supreme Court's construction of the Act by use of objective criteria typically employed in determining the applicability of anti-discrimination statutes to the membership policies of assertedly private clubs, ensures that the Act's reach is readily ascertainable. The contrast that court drew between appellee and the Kiwanis Club also disposes of appellee's contention that the Act is unconstitutionally overbroad. That court's articulated willingness to adopt limiting constructions that would exclude private groups from the Act's reach, together with the commonly used and sufficiently precise standards it employed to determine that appellee is not such a group, establishes that the Act, as construed, does not create an unacceptable risk of application to a substantial amount of protected conduct. Pp. 629–631.

709 F. 2d 1560, reversed.

BRENNAN, J., delivered the opinion of the Court, in which WHITE, MARSHALL, POWELL, and STEVENS, JJ., joined, and in Parts I and III of which O'CONNOR, J., joined. O'CONNOR, J., filed an opinion concurring in part and concurring in the judgment, *post*, p. 631. REHNQUIST, J., concurred in the judgment. BURGER, C. J., and BLACKMUN, J., took no part in the decision of the case.

Richard L. Varco, Jr., Special Assistant Attorney General of Minnesota, argued the cause for appellants. With him on the briefs were *Hubert H. Humphrey III*, Attorney General, *Kent G. Harbison*, Chief Deputy Attorney General, *Thomas R. Muck*, Deputy Attorney General, and *Richard S. Slowes*, Assistant Attorney General.

Carl D. Hall, Jr., argued the cause for appellee. With him on the brief was *Clay R. Moore*.*

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*Briefs of *amici curiae* urging reversal were filed for the State of New York et al. by *Robert Abrams*, Attorney General of New York, *Lawrence S. Kahn*, *Rosemarie Rhodes*, *Shelley B. Mayer* and *Kim E. Greene*, Assistant Attorneys General, *John K. Van De Kamp*, Attorney General of California, *Andrea Sheridan Ordin*, Chief Assistant Attorney General, and *Marian M. Johnston*, Deputy Attorney General; for the Alliance for Women Membership by *Danielle E. deBenedictis;* for the American Civil Liberties Union et al. by *Laurence H. Tribe*, *Burt Neuborne*, *Isabelle Katz*

JUSTICE BRENNAN delivered the opinion of the Court.

This case requires us to address a conflict between a State's efforts to eliminate gender-based discrimination against its citizens and the constitutional freedom of association asserted by members of a private organization. In the decision under review, the Court of Appeals for the Eighth Circuit concluded that, by requiring the United States Jaycees to admit women as full voting members, the Minnesota Human Rights Act violates the First and Fourteenth Amendment rights of the organization's members. We noted probable jurisdiction, *Gomez-Bethke* v. *United States Jaycees*, 464 U. S. 1037 (1984), and now reverse.

I

A

The United States Jaycees (Jaycees), founded in 1920 as the Junior Chamber of Commerce, is a nonprofit membership corporation, incorporated in Missouri with national headquarters in Tulsa, Okla. The objective of the Jaycees, as set out in its bylaws, is to pursue

> "such educational and charitable purposes as will promote and foster the growth and development of young men's civic organizations in the United States, designed to inculcate in the individual membership of such organization a spirit of genuine Americanism and civic inter-

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Pinzler, *E. Richard Larson*, and *Charles S. Sims;* for Community Business Leaders by *Eldon J. Spencer, Jr.;* for the NAACP Legal Defense and Educational Fund, Inc., by *Jack Greenberg*, *Beth J. Lief*, and *Judith Reed;* for the National League of Cities et al. by *Lawrence R. Velvel* and *Elaine D. Kaplan;* for the National Organization for Women et al. by *Judith I. Avner* and *Charlotte M. Fischman;* and for Women's Issues Network, Inc., by *Neil H. Cogan.*

Briefs of *amici curiae* urging affirmance were filed for the Boy Scouts of America by *Philip A. Lacovara*, *Malcolm E. Wheeler*, *George A. Davidson*, and *David K. Park;* for the Conference of Private Organizations by *Leonard J. Henzke, Jr.;* and for Rotary International by *William P. Sutter* and *Wm. John Kennedy.*

> est, and as a supplementary education institution to provide them with opportunity for personal development and achievement and an avenue for intelligent participation by young men in the affairs of their community, state and nation, and to develop true friendship and understanding among young men of all nations." Quoted in Brief for Appellee 2.

The organization's bylaws establish seven classes of membership, including individual or regular members, associate individual members, and local chapters. Regular membership is limited to young men between the ages of 18 and 35, while associate membership is available to individuals or groups ineligible for regular membership, principally women and older men. An associate member, whose dues are somewhat lower than those charged regular members, may not vote, hold local or national office, or participate in certain leadership training and awards programs. The bylaws define a local chapter as "[a]ny young men's organization of good repute existing in any community within the United States, organized for purposes similar to and consistent with those" of the national organization. App. to Juris. Statement A98. The ultimate policymaking authority of the Jaycees rests with an annual national convention, consisting of delegates from each local chapter, with a national president and board of directors. At the time of trial in August 1981, the Jaycees had approximately 295,000 members in 7,400 local chapters affiliated with 51 state organizations. There were at that time about 11,915 associate members. The national organization's executive vice president estimated at trial that women associate members make up about two percent of the Jaycees' total membership. Tr. 56.

New members are recruited to the Jaycees through the local chapters, although the state and national organizations are also actively involved in recruitment through a variety of promotional activities. A new regular member pays an initial fee followed by annual dues; in exchange, he is entitled